

26STCP01094 26STCP01094

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Case Number: 26STCP01094 Hearing Date: September 24, 2026 Dept: 836

PETITION FOR RELIEF FROM GOVERNMENT CLAIMS

PRESENTATION REQUIREMENT

Date: 9/24/26

(1:30 PM)

Case: Zoe S. Nole, et al. v. Los

Angeles County Metropolitan Transportation Authority, et al. (26STCP01094)

TENTATIVE RULING:

Petitioners Zoe S. Noel and Haven Nole's Petition for Relief
from Government Claims Act Claim Presentation Requirement is DENIED AS MOOT.

Los Angeles County Metropolitan Transportation Authority's
evidentiary objections are OVERRULED.

As alleged in the petition, petitioner Zoe S. Noel sustained
injuries from an incident involving a bus operated by respondent Los Angeles
County Metropolitan Transportation Authority on March 18, 2024. (Pet. at 2:1.) Petitioner
Haven Nole may have witnessed the incident and suffered psychological injury.
(Yehoshua Decl. ¶¶ 6-7 & Ex. B at 2.) A claim
relating to a cause of action for personal injury must be presented to the
public entity no later than six months after accrual of the cause of action.¿
(Gov. Code § 911.2; Munoz v. State of California¿(1995) 33 Cal.App.4th
1767, 1776.)

Before and after the incident, petitioner claims to have

been having cognitive ability problems. (Pet. at 1:27-28, 2:2-28.) Petitioner further claims to still be dealing with cognitive limitations. (Pet. at 3:4-5.) Nonetheless, petitioners were represented by counsel following the incident, and respondent's records show that claims were timely filed for both petitioners with respondent Los Angeles County Metropolitan Transportation Authority in August 2024, which was within six months from the date of the incident. (Yehoshua Decl. ¶¶ 6-7 & Ex. B.) These claims were rejected on April 30, 2025, with notices mailed to petitioners and their counsel of record. (Yehoshua Decl. ¶¶ 8-10 & Exs. C-D; Pet. Ex. A.)

Respondent's records and the petition show that petitioner was advised that, if she wanted to file a lawsuit, she was required to do so by October 30, 2025. (Yehoshua Decl. ¶¶ 11-12; Pet. Ex. B; see also Gov. Code § 945.6(a) [suit against public entity must be commenced within six months after notice of claim denial].) Petitioners did not file any such lawsuit against respondent Los Angeles County Metropolitan Transportation Authority. Instead, petitioners filed a government claim with the City of Los Angeles on October 14, 2025, which was rejected by the City on November 5, 2025. (Pet., Ex. C.)

Given that petitioners did not file any lawsuit against respondent Los Angeles County Metropolitan Transportation Authority within six months after denial of their claim, any relief this Court might provide under Government Code § 946.6 is of no moment. Simply put, section 946.6 may provide for relief from the government claims presentation requirement, but it provides for no relief from the failure to timely file suit within six months of rejection of the claim, as required is by section 945.6.

Even though petitioner claims that she did not possess "a complete copy of the claim materials or clear documentation establishing the status of any rejection applicable to Plaintiff individually" (Pet. at 3:7-8), those facts, even if true, would not alter the result here. To begin with, petitioners still have not brought any suit for damages against respondent Los Angeles County Metropolitan Transportation Authority. In any event, it is undisputed that petitioners were informed on May 27, 2025, of the obligation to file a lawsuit by October 30, 2025. (Pet. Ex. B.) Furthermore, the timing of when a lawsuit must be filed is triggered by the date the notice was "deposited in the mail," which occurred on April 30, 2025. (Gov. Code § 945.6(a)(1); Yehoshua Decl. ¶¶ 8-10 & Exs. C-E.)

Lastly, petitioner's claim filed with the City of Los Angeles on October 14, 2025 does not resuscitate her ability to file a lawsuit against respondent Los Angeles County Metropolitan Transportation Authority, an entirely different public entity. The Court is unaware of any legal authority that would support such a proposition. Indeed, the rejection notice by the City for petitioner's claim, dated November 5, 2025, informed petitioner explicitly that the respondent is a separate public entity and not part of the City of Los Angeles. (Pet. Ex. C.)

Accordingly, because petitioners did not timely file suit against respondent Los Angeles County Metropolitan Transportation Authority as required by Government Code § 945.6(a), their request for relief from the government claims presentation requirement under Government Code § 946.6 is MOOT and must be DENIED.